

VCU334384 Aguila, Miguel vs. FCA US, LLC

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Division: Civil Law and Motion

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Motion: FCA's Motion for Judgment on the Pleadings

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Re: Aguila, Miguel vs. FCA US, LLC

Case No.: VCU334384

Date: July 16, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: FCA's Motion for Judgment on the Pleadings

Tentative Ruling: To deny the motion as to the first, second, and fifth causes of action; to grant the motion without leave to amend as to the fourth cause of action; to grant the motion as to the third and sixth causes of action with leave to amend; Plaintiff shall have ten (10) days to file an amended complaint. Case Management Conference is continued to September 30, 2026; 8:30 am; D1.

Facts

This matter was filed April 7, 2025.

Plaintiff alleges on or about December 30, 2018, Plaintiff entered into a warranty contract with Defendant FCA regarding a 2019 Jeep Grand Cherokee, vehicle identification number 1C4RJFAG7KCS580183 (hereafter "Subject Vehicle") and "...delivered the Subject Vehicle to Defendant LAMPE for substantial repair on at least one occasion." (Complaint ¶¶7, 60.)

Plaintiff alleges that the causes of action arise out of the warranty obligations of FCA in connection with a motor vehicle for which FCA issued a written warranty and that "Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, engine defects, transmission defects, electrical defects, climate control defects; among other defects and non-conformities." (Complaint ¶¶11, 12.)

Additionally, that Plaintiff "purchased the Subject Vehicle as manufactured with FCA's defective engine" and that "Plaintiff is informed, believes, and thereon alleges that FCA knew since prior to Plaintiff purchasing the Subject Vehicle, that the 2019 Jeep Grand Cherokee vehicles equipped with the 3.6L engine have one or more defects that can result in loss of power,

stalling, engine running rough, engine misfires, failure or replacement of the engine (the "Engine Defect")." (Complaint ¶¶15, 16.)

Further, that the Engine Defect is a safety concern and that FCA "...was well aware and knew that the Vehicle was defective but failed to disclose this fact to Plaintiff at the time of sale and thereafter." (Complaint ¶¶17, 18.) Further, that FCA acquired knowledge of the Engine Defect through sources not available to Plaintiff including "pre-production and post- production testing data; early consumer complaints about the Engine Defect made directly to FCA and its network of dealers; aggregate warranty data compiled from FCA's network of dealers; testing conducted by FCA in response to these complaints; as well as warranty repair and part replacements data received by FCA from FCA's network of dealers..." (Complaint ¶19.) Further that "while FCA knew about the Engine Defect, and its safety risks since prior to Plaintiff purchasing the Subject Vehicle, FCA nevertheless concealed and failed to disclose the defective nature of the Vehicle and its Engine Defect to its sales representatives and Plaintiff at the time of sale and thereafter." (Complaint ¶¶20, 22-26.)

Plaintiff alleges further "Plaintiff is a reasonable consumer who interacted with sales representatives, considered FCA's advertisement, and/or other marketing materials concerning the FCA Vehicles prior to purchasing the Subject Vehicle. Had FCA revealed the Engine Defect, Plaintiff would have been aware of it and would not have purchased the Subject Vehicle." (Complaint ¶21.)

As to the statute of limitations, Plaintiff pleads:

"37. To the extent there are any statutes of limitation applicable to Plaintiff's claims- including, without limitation, the express warranty, implied warranty, and negligent repair — the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, the fraudulent concealment rules, equitable estoppel, the repair rule, and/or class action tolling (e.g., the American Pipe rule).

38. Plaintiff discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them. However, FCA failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act." (Complaint ¶¶ 37, 38.)

Plaintiff alleges causes of action for (1) Violation of Civil Code section 1793.2(d); (2) Violation of Civil Code section 1793.2(b); (3) Violation of Civil Code section 1793.2(a)(3); (4) Violation of Civil Code section 1791.1, 1794, 1795.5.) (5) Negligent Repair (against Defendant Lampe); and (6) Fraudulent Inducement - Concealment.

Defendants FCA and Lampe move for judgment on the pleadings as to each cause of action on a number of grounds as indicated below.

Plaintiff filed a late opposition on July 6, 2026 to which Defendant has filed a reply the same date.

Authority and Analysis

Motion for Judgment on the Pleadings

A motion for judgment on the pleadings is used to challenge a pleading in the same manner as a general demurrer, i.e., the challenged pleading (1) establishes that the court does not have subject matter jurisdiction or (2) does not allege facts sufficient to support a cause of action or defense. (Code Civ. Proc. § 438(c)(1), see *International Assn. of Firefighters v. City of San Jose* (2011) 195 Cal.App.4th 1179,1196; *Bufile v. Dollar Financial Group* (2008) 162 Cal.App.4th 1193, 1202.) Like a demurrer, the grounds for this motion must appear on the face of the pleading or be based on facts capable of judicial notice, including court records. (See *Bufile*, at 1202; *Stencel Aero Engineering Corp. v. Superior Court* (1976) 56 Cal.App.3d 978, 986, and fn. 6.)

First and Second Causes of Action – Time Barred Under Civil Code Sections 1793.2(b) and (d)

Defendant FCA first contends that the January 1, 2025 changes to sections 871.20 and 871.21 bar these causes of action, as section 871.21(a) states “An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty” and subsection (b) states “Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.”

Defendant notes the complaint here was filed March 7, 2025, which is nine weeks beyond six years from the date of purchase December 30, 2018.

Therefore, Defendant argues: “In other words, according to the express allegations in Plaintiffs Complaint, the statute of repose for Plaintiffs first two causes of action expired in late 2024 (six years after the date of original delivery of the motor vehicle as articulated in § 871.21) more than two (2) months prior to the filing of this lawsuit.”

To start, “[W]hile a statute of limitations normally sets the time within which proceedings must be commenced once a cause of action accrues, the statute of repose limits the time within which an action may be brought and is not related to accrual. Indeed, ‘the injury need not have occurred, much less have been discovered. Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a specific event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted.’ [Citation.] A statute of repose thus is harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded. (Ibid.)” (Giest v. Sequoia Ventures, Inc. (2000) 83 Cal.App.4th 300, 305.)

The issue for the Court is whether this statute of repose is applied retroactively in a violation of Plaintiff’s due process rights.

“Legislation that shortens a limitations period is considered procedural and is applied retroactively to preexisting causes of action, so long as parties are given a reasonable time in which to sue. [Citations.] When necessary to provide a reasonable time to sue, a shortened limitations period may be applied prospectively so that it commences on the effective date of the statute, rather than on the date the cause of action accrued. [Citations.]” (Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35 Cal.4th 1072, 1091-1092.)

“Even though generally, the operation of statutes of limitations is considered to be a procedural matter in California, if a limitations period has been legislatively shortened, constitutional and substantive issues will arise concerning retrospective application if: ‘[I]n a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all.’ [Citation.] It is a question of law whether a party has a reasonable time after a change in the law to file an action. [Citation.]” (Szynter v. Malone (2007) 155 Cal.App.4th 1152, 1162.)

Here, under Defendant FCA’s theory, Plaintiff’s cause of action expired just before the law became effective January 1, 2025. The Court considers a retroactive application which would deny Plaintiff’s claims before the law became active to be violative of Plaintiff’s due process rights.

The Court, therefore, denies the motion as to this argument.

Third Cause of Action – Civil Code section 1793.2(a)(3) – Failure to Allege Sufficient Facts

Civil Code section 1793.2 (a)(3) provides that a dealer must "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

Defendant FCA argues the complaint lacks allegations as to the Vehicles service and repair history, noting no allegations as to service history, repair history and lack of presentation of the Subject Vehicle to an authorized dealer and that dealership was unable to complete a repair due to lack of sufficient service literature and replacement parts.

The Court agrees that the complaint is silent as to the requirements of subsection (a)(3) as to presentation for repair, and inability to repair due to lack of literature or parts.

Therefore, the Court grants the motion as to the third cause of action with leave to amend.

Fourth Cause of Action – Implied Warranty of Merchantability – Time Barred

California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306.)

As noted by Defendant, implied warranty claims are subject to a four-year statute of limitations under the California UCC, citing *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495. (Comm. Code, § 2725(1).)

Defendant argues that the breach of implied warranty claim accrues upon purchase of the Subject Vehicle and that delayed discovery does not apply to implied warranty claims. The Court notes *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 132 agrees, noting that delayed discovery does not apply to implied warranty claims under Commercial Code section 2725, absent an express warranty explicitly extending to future performance. The Court notes that further, "[i]n the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (*Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1305.)

Therefore, the Court finds the statute of limitations as to this claim expired four years from purchase of the Subject Vehicle as that is when Plaintiff alleges the breach of warranty occurred. As such, the statute appears to have expired December 30, 2022.

The Court, as such, grants the motion for judgment on the pleadings as to the fourth cause of action without leave to amend.

Fifth Cause of Action – Negligent Repair – Insufficient Facts

The necessary elements for negligence claim are: (1) the existence of a legal duty of care that the defendant owed to the plaintiff; (2) breach; (3) causation; and (4) damages. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

The Court notes the operative complaint alleges no specific repair attempts as to Lampe, with the only reference that "Plaintiffs delivered the Subject Vehicle to Defendant LAMPE for substantial repair on at least one occasion." (Complaint ¶60.)

However, *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 indicates negligence may be pleaded generally, and, while lacking specifics, the complaint pleads a duty to Plaintiffs to use ordinary care and skill in storage,

preparation and repair of the Subject Vehicle, a breach by failure to use the ordinary skill to repair the Subject Vehicle, and that the breach proximately caused the damages. Further, any ambiguity via this method of pleading could be clarified under modern discovery procedures. (*Khouri v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Therefore, the Court denies the motion as to the fifth cause of action for negligent repair.

Sixth Cause of Action – Fraudulent Inducement – Statute of Limitations

A three-year limitations period applies to fraud claims. (Code Civ. Proc. § 338, subd. (d).)

The Court, however, does not believe the statute of limitations started until after purchase of the Vehicle and after successive presentations of the Vehicle to an authorized dealer based on the alleged defect.

Under the delayed discovery rule, a cause of action accrues at the time when the cause of action is complete with all its elements. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807.) The test for when the statute of limitations on a claim starts to run under the delayed discovery rule is "whether the plaintiff has information of circumstances sufficient to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his or her investigation." (*McGee v. Weinberg* (1979) 97 Cal.App.3d 798, 803.)

"In order to invoke this special defense to the statute of limitations, the plaintiff must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (*Saliter v. Pierce Brothers Mortuaries* (1978) 81 Cal.App.3d 292, 300.) "The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer." (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1319 (internal quotations omitted).

Further, "[i]t has long been established that the defendant's fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it. [Citation.] Like the discovery rule, the rule of fraudulent concealment is an equitable principle designed to effect substantial justice between the parties; its rationale is that the culpable defendant should be estopped from profiting by his own wrong to the extent that it hindered an 'otherwise diligent' plaintiff in discovering his cause of action. [Citations.]" (*Bernson v. Browning-Ferris Indus.* (1994) 7 Cal.4th 926, 931.)

However, the Court agrees that these theories, as well as the other theories as to tolling, are insufficiently pled. Plaintiff does not allege when the Engine Defect arose, when the Vehicle was presented for the Engine Defect or other such facts that would establish either delayed discovery, fraudulent concealment tolling or any other such theory.

Therefore, without reaching the other arguments as to this cause of action, the Court grants the motion for judgment on the pleadings as to the sixth cause of action without leave to amend.

Because the Court has permitted leave to amend, the Court declines to rule on the issue of striking punitive damages.

Leave to Amend

A motion for judgment on the pleadings, like a demurrer, cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (*Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton* (2003) 109 Cal.App.4th 1219, 1226.)

Therefore, the Court grants the motion with leave to amend as to the third and sixth causes of action. Plaintiff shall have ten (10) days to file an amended complaint.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.